

Calendar Line 4

Case Name: *Kennon Hudson vs Richard Gorini et al*

Case No.: 25CV462300

Plaintiff seeks an order compelling Defendant to provide further, code-compliant responses to Plaintiff's Special Interrogatories, Set One, Nos. 7, 15, 19, 24, 28, 32, 36, 40, 44, 48, 52 and 56. Plaintiff also requests monetary sanctions against Defendant in the amount of \$5,500.00.

As a threshold matter, the Court is satisfied with Plaintiff's meet and confer efforts.

Code of Civil Procedure § 2030.220(a) states, "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits." A broad statement that the information is available from a mass of documents is insufficient. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 784.)

Defendant argues that his responses "specifically identified information, witnesses, and categories of documents including, relevant email correspondence during defined periods, correspondence involving Scott Ross, Jennifer Scharre, and Jerome Bellotti, and filings in the probate actions." (Opposition, at p. 4.) The Court is not persuaded. Instead, the Court finds the responses inherently non-specific. Even an assertion that Defendant "specifically" identified "categories" is not specifically responding to the requests, and there is no specific identification of *relevant* material when a response refers, for instance, to months of correspondence or years of court filings.

Defendant argues that Plaintiff's use of the words "refer" and "relate to" are "so broad and expansive as to encompass virtually every communication, note, pleading, and document generated in the multi-year representation of Plaintiff in the underlying trust and probate matters."² (Opposition, at p. 2.) Taken in the context of the propounded discovery requests and the nature of the litigation, the Court disagrees. The Court has no doubt Defendant knows the specific, individual items upon which he relies, but he seeks to leave it to Plaintiff to guess.

Section 2030.300(d) provides that the Court shall impose monetary sanctions against any party, person or attorney who unsuccessfully opposes a motion to compel a further response unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. The Court does not find substantial justification or other circumstances to preclude the imposition of sanctions.

Plaintiff's motion is GRANTED. Defendant shall provide further, code-compliant responses to Plaintiff's Special Interrogatories, Set One, Nos. 7, 15, 19, 24, 28, 32, 36, 40, 44, 48, 52 and 56 within 15 days of service of the final order.

Defendant shall pay monetary sanctions to Plaintiff in the amount of \$5,500.00 within 30 days of the date of service of the final order.

² Like Plaintiff, the Court is perplexed by Defendant's citation to *Manlin v. Milner* (2022) 82 Cal.App.5th 1004 as it does not appear to support Defendant's asserted proposition.

Plaintiff shall prepare the final order within 10 days of the date of the hearing.

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Calendar Line 5

Case Name: *Gerardo Vasquez v. General Motors, LLC*

Case No.: 21CV377708

Plaintiff seeks an award of attorneys' fees and costs of \$46,155.70. This request consists of (1) \$29,884.00 in attorney fees; (2) a 1.35 multiplier enhancement on the attorney fees (or \$10,459.40); (3) \$1,812.30 in costs and expenses; and (4) an additional \$4,000.00 to review an opposition, draft a reply, and attend a hearing on the motion. The motion is GRANTED IN PART.

The Court has received no opposition. "[T]he failure to file an opposition creates an inference that the motion ... is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.). Nevertheless, the Court denies a multiplier on the basis that the risks and complexities of this case do not justify it. Also, the Court will not award fees for responding to an opposition, drafting a reply, or attending a hearing on the motion. These fees either have not been incurred or are anticipatory.

Defendant is ordered to pay to Plaintiff \$31,696.30 in attorneys' fees and costs within sixty (60) days of service of the final order.

Plaintiff to prepare the final order within 15 days of the date of the hearing.

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